

Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City

TWENTIETH CONGRESS
First Regular Session

HOUSE BILL NO. 2319



Introduced by Representatives
BELLA VANESSA B. SUANSING and MIKAELA ANGELA B. SUANSING

AN ACT
CRIMINALIZING THE CREATION, DISTRIBUTION, SALE, PUBLICATION, PROMOTION AND POSSESSION OF CHILD SEXUAL ABUSE OR EXPLOITATION MATERIALS CREATED THROUGH ARTIFICIAL INTELLIGENCE OR ANY OTHER COMPUTER-GENERATED OR TECHNOLOGICAL MEANS, AND CRIMINALIZING THE PRODUCTION, DISTRIBUTION, SALE, PUBLICATION, PROMOTION, AND POSSESSION OF VULGAR, PROVOCATIVE, SEXUALLY SUGGESTIVE VISUAL DEPICTIONS OF CHILDREN OR IDENTIFIABLE MINORS, AMENDING FOR THE PURPOSE REPUBLIC ACT NO. 11930, OTHERWISE KNOWN AS THE “ANTI-ONLINE SEXUAL ABUSE OR EXPLOITATION OF CHILDREN (OSAEC) AND THE ANTI-CHILD SEXUAL ABUSE OR EXPLOITATION MATERIALS (CSAEM) ACT”

EXPLANATORY NOTE

The advent of new technological phenomena has historically disproportionately affected vulnerable populations of children, and the digital revolution has been no different. Digitalization amplifies the vulnerability of children due to the lack of adult supervision in these spaces. In a study conducted by UNICEF in 2022, one (1) in five (5) Filipino internet users aged 12-17 experienced various forms of online sexual exploitation and abuse.¹ These cases include being blackmailed into performing sexual acts, having sexual images shared without their consent, or being coerced into sexual activities in exchange for monetary or material things. These cases, when translated to national population estimates to two million children subjected to online harm within a single year.

The Artificial Intelligence (AI) revolution has only exacerbated the vulnerability of children in the digital space. The last decade saw the emergence of more powerful and sophisticated artificial intelligence (AI) software capable of generating hyper-realistic

¹ “Online Sexual Abuse and Exploitation of Children in the Philippines | Unicef Philippines,” UNICEF, accessed July 24, 2025, <https://www.unicef.org/philippines/online-sexual-abuse-and-exploitation-children-philippines>.

synthetic media, commonly referred to as "deepfakes," using any image or video of a person uploaded online. Malicious actors have now subverted deepfake technology for perverse purposes. A study in 2019 indicates that approximately 96% of deepfake materials are pornographic in nature.² These perverse deepfakes have now developed to exploit children. Council for the Welfare of Children (CWC) Executive Director Angelo Tapales warned the public in 2023 of the emerging threat of deepfakes in the Philippines.³ Cybersecurity experts from Deep Web Connect warned that malicious actors are using "undress AI" apps—tools that can digitally strip clothing from images of children—to create and distribute synthetic child sexual abuse material (CSAM).⁴ The Department of Social Welfare and Development (DSWD) noted that the vulnerability of Filipino children is heightened by poverty, constant online presence, and English proficiency, which makes them easier targets.⁵

In 2023, Department of Justice (DOJ) Secretary Jesus Crispin Remulla urged the House of Representatives to explore legal measures to address the AI-specific cybercrimes that exploit children.⁶ Though in the same year, laudable efforts to protect children from online sexual exploitation were passed by the Senate in 2023 with Republic Act No. 11930, otherwise known as the Anti-Online Sexual Abuse or Exploitation of Children (OSAEC) and the Anti-Child Sexual Abuse or Exploitation Materials (CSAEM) Act", AI-specific online child sexual abuse and exploitation necessitates the establishment of distinctive provisions with the greatest urgency.

In pursuit of the utmost responsibility of the State to protect our nation's youth and to protect them against all forms of sexual violence, abuse and exploitation, the following measure seeks to introduce new crimes prosecutable under Republic Act No. 11930, including the criminalization of the creation, distribution and possession of images, videos and other visual content depicting child sexual abuse or exploitation created through software, machine learning, artificial intelligence, and or computer-generated means, and the creation, distribution, and possession of vulgar, provocative, and sexually suggestive images of undressed children or minors, even when there is no explicit sexual act involved, allowing victims and their families to seek justice and accountability. This bill also proposes that online platforms block access to, deactivate accounts and remove content involving the publication and distribution of CSAEM, recognizing the critical role of online platforms in the proliferation of exploitative content.

The future of the country lies in the hands of its children. It is the State's utmost responsibility to ensure that its children are raised in an atmosphere of morality and rectitude. With the distinct positioning of Filipino children in maximal vulnerability to online sexual

² Benjamin N. Jacobsen, and Jill Simpson. 2023. "The Tensions of Deepfakes." *Information, Communication & Society* 27 (6): 1095–1109. doi:10.1080/1369118X.2023.2234980.

³ Jane Bautista, "Deepfake Photos of Kids for Online Exploitation 'an Emerging Threat,'" INQUIRER.net, November 29, 2023, <https://newsinfo.inquirer.net/1867342/deepfake-photos-of-kids-for-online-exploitation-an-emerging-threat>.

⁴ Angelo Gonzales, "AI-Fueled Cyberattacks on Ph Organizations on the Rise – Cybersecurity Firm," RAPPLER, June 3, 2025, <https://www.rappler.com/technology/ai-fueled-cyberattacks-philippines-rise-fortinet-idc-2025-survey/#:~:text=A%20total%20of%2078%25%20of,in%20these%20types%20of%20attacks>.

⁵ Asian Development Bank, "Poverty in the Philippines: Causes, Constraints and Opportunities," Asian Development Bank, December 1, 2009, <https://www.adb.org/publications/poverty-philippines-causes-constraints-and-opportunities>.

⁶ Angelo Gonzales, "AI-Fueled Cyberattacks on Ph Organizations on the Rise – Cybersecurity Firm," RAPPLER, June 3, 2025, <https://www.rappler.com/technology/ai-fueled-cyberattacks-philippines-rise-fortinet-idc-2025-survey/#:~:text=A%20total%20of%2078%25%20of,in%20these%20types%20of%20attacks>.

abuse and exploitation, it is of the greatest urgency that the State acts swiftly and authoritatively on this matter. With the state of anarchy that governs the internet and social media, every Filipino child is at risk of online and sexual exploitation. The State must deter offenders from further exploiting the current gaps and shall establish a strong legal framework to protect children from abuse, sexualization, and exploitation. The protection of children must be prioritized to stop the perpetuation and proliferation of CSAEM, leveraging the full extent of the power of the national government to safeguard every Filipino child.

In the view of the foregoing, the immediate passage of this measure is earnestly sought.



BELLA VANESSA B. SUANSING
2nd District of Sultan Kudarat



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1st District of Nueva Ecija

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Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. Amendatory Provisions. – For the purposes of this Act, the following provisions of Republic Act No. 11930, otherwise known as the “Anti-Online Sexual Abuse or Exploitation of Children (OSAEC) and the Anti-Child Sexual Abuse or Exploitation Materials (CSAEM) Act”, are hereby amended as follows:

(a) Section 3 is hereby amended:

“Section 3. *Definition of Terms.* – As used in this Act:

“(A) ARTIFICIAL INTELLIGENCE (AI) REFERS TO A MACHINE-BASED OR ARTIFICIAL SYSTEM THAT CAN, FOR A GIVEN SET OF HUMAN-DEFINED OBJECTIVES OR INPUTS, GENERATE OUTPUT, MAKE PREDICTIONS, SOLVE PROBLEMS AND ACCOMPLISH TASKS REQUIRING HUMAN-LIKE PERCEPTION, COGNITION, PLANNING, LEARNING, COMMUNICATION OR ACTION;

“X X X

“(D) Child sexual abuse or exploitation material or child sexual abuse material (CSAEM) refers to any representation, whether offline, or by, through or with the use of ICT, by means of visual, video, audio, written, or any combination thereof, by electronic, mechanical, digital, optical, magnetic or any other means, INCLUDING IMAGES, VIDEOS AND OTHER VISUAL CONTENT CREATED THROUGH THE USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL INTELLIGENCE OR ANY COMPUTER-GENERATED OR TECHNOLOGICAL MEANS WHICH MAY BE DEvised IN THE FUTURE of a child OR AN IDENTIFIABLE MINOR engaged or involved in real or simulated sexual activities, or depicting acts of sexual abuse or exploitation of a child as a sexual object. [It shall also include materials that focus on the genitalia or other private body parts of a child.]

“CSAEM SHALL ALSO REFER TO IMAGES OR OTHER VISUAL CONTENT WHICH FOCUS ON THE GENITALIA OR OTHER PRIVATE BODY PARTS OF A CHILD OR IDENTIFIABLE MINOR, OR IMAGES OR OTHER VISUAL CONTENT WHEREIN A CHILD OR AN IDENTIFIABLE MINOR SHOWS THEIR GENITALIA OR PRIVATE PARTS IN A VULGAR, PROVOCATIVE OR SEXUALLY SUGGESTIVE MANNER.

“For the purposes of this Act, CSAEM may interchangeably be referred to as CSAM;

“X X X

~~“(J) Image-based sexual abuse (ISA) refers to [a form of technology-facilitated sexual violence. The term describes a pattern of behavior involving] the nonconsensual creation, distribution, or threats to distribute nude or sexual images. It includes a diversity of behaviors including, but not limited to, "sextortion scams," the use of artificial intelligence to construct "deepfake" pornographic videos, threats to distribute photographs and videos; and the taking or sharing of sexual assault imagery;]~~

“X X X

“(K) IDENTIFIABLE MINOR REFERS TO A PERSON WHO:

“(I) WHO IS THE SUBJECT OF A VISUAL DEPICTION OR IS SHOWN OR REPRESENTED THEREIN;

“(II) WHO IS A MINOR AT THE TIME OF THE CREATION, PRODUCTION, PUBLICATION, OR DISTRIBUTION OF THE VISUAL DEPICTION; AND

“(III) WHOSE FACE, LIKENESS, OR OTHER DISTINGUISHING CHARACTERISTIC, SUCH AS, BUT NOT LIMITED TO, A UNIQUE BIRTHMARK OR OTHER

**RECOGNIZABLE FACIAL OR BODY FEATURE, IS SHOWN
OR REPRESENTED IN THE VISUAL DEPICTION;**

“X X X

**“(DD) SYNTHETIC MEDIA REFERS TO IMAGES, VIDEOS AND
OTHER SIMILAR CONTENT CREATED THROUGH
MATHEMATICAL MODELLING COMPUTATIONS OF
COMPILED DATA, THROUGH THE MANIPULATION AND
MODIFICATION OF DATA VIA AUTOMATED OR ARTIFICIAL
MEANS, AS OPPOSED TO BEING CAPTURED BY A CAMERA OR
ANY OTHER INSTRUMENT OF THE LIKE.**

**“SYNTHETIC MEDIA IS CREATED THROUGH THE USE OF
ARTIFICIAL INTELLIGENCE ALGORITHMS FOR THE
PURPOSE OF PRODUCING AUTOMATED OR SYNTHETIC
CONTENT. EXAMPLES OF SYNTHETIC MEDIA INCLUDE, BUT
ARE NOT LIMITED TO, MEDIA CREATED BY GENERATIVE AI
SYSTEMS AND BY APPLICATIONS USING GENERATIVE AI.**

**“FOR THE PURPOSE OF THIS ACT, SYNTHETIC MEDIA SHALL
REFER TO ALL FORMS OF MEDIA CREATED THROUGH THE
USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL
INTELLIGENCE OR ANY COMPUTER-GENERATED OR
TECHNOLOGICAL MEANS WHICH MAY BE DEvised IN THE
FUTURE.**

“X X X.”

(b) Section 4 is hereby amended:

“Section 4. *Unlawful or Prohibited Acts.* – Regardless of the consent of the child, it shall be unlawful for any person to commit the following acts through online or offline means or a combination of both:

“X X X

**“(k) To [~~knowingly~~] publish, transmit [~~and~~] OR broadcast, by any means,
any form of CSAEM, OR AID THE PUBLICATION,
TRANSMISSION OR BROADCASTING OF THE SAME;**

“X X X”

**“(n) To sexualize children by presenting them as objects of sexual fantasy, or
making them conversational subjects of sexual fantasies, in any online or
digital platform, OR IN ANY FORM OF MEDIA PUBLISHED,
DISTRIBUTED OR READILY ACCESSIBLE TO THE PUBLIC;**

“X X X

“(s) To willfully access any form of CSAEM; ~~and~~”

“(T) TO CREATE, PRODUCE, OR MANUFACTURE ANY FORM OF CSAEM THROUGH THE USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL INTELLIGENCE OR ANY COMPUTER-GENERATED OR TECHNOLOGICAL MEANS WHICH MAY BE DEvised IN THE FUTURE;

“(U) TO DISTRIBUTE, TO AID THE DISTRIBUTION, OR TO AID THE PUBLICATION OF CSAEM CREATED THROUGH THE USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL INTELLIGENCE OR ANY COMPUTER-GENERATED OR TECHNOLOGICAL MEANS WHICH MAY BE DEvised IN THE FUTURE, SUCH AS, BUT NOT LIMITED TO: SHARING VIA EMAIL, VIA MESSAGING APPS, VIA FILE-SHARING SERVICES, OR VIA OTHER MEANS OF ONLINE OR OFFLINE COMMUNICATION;

PROVIDED, THAT THE ACT OF SHARING OR REPOSTING ANY FORM OF CSAEM ON ONLINE PLATFORMS SHALL CONSTITUTE THE ACT OF DISTRIBUTING CSAEM;

“(V) TO OFFER, SELL, ADVERTISE, PROMOTE, OR TO MAKE THE OFFER TO SELL, ADVERTISE OR PROMOTE ANY FORM OF CSAEM CREATED THROUGH THE USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL INTELLIGENCE OR ANY COMPUTER-GENERATED OR TECHNOLOGICAL MEANS WHICH MAY BE DEvised IN THE FUTURE;

“(W) TO POSSESS ANY FORM OF CSAEM CREATED THROUGH THE USE OF SOFTWARE, MACHINE LEARNING, ARTIFICIAL INTELLIGENCE OR ANY COMPUTER-GENERATED OR TECHNOLOGICAL MEANS WHICH MAY BE DEvised IN THE FUTURE;

“(X) To conspire to commit any of the prohibited acts stated in this section:

“X X X.”

(c) Section 9 is hereby amended:

“Section 9. *Duties and Responsibilities of Private Sectors.* –

“(a) Duties of Internet Intermediaries. – Internet intermediaries shall:

“(1) Adopt in their terms of service or service agreements with third-party users or creators of contents, products and services the prohibition of any form or any conduct of streaming or live-streaming

of OSAEC and **THE PUBLICATION OF CSAEM** in the use of their website, platform, server or facility

“x x x

“(3) Immediately block access to, remove or take down the internet address, uniform resource locator (URL), websites or any content thereof containing CSAEM or involving streaming or live-streaming of OSAEC, **AND IMMEDIATELY BLOCK ACCESS TO, REMOVE OR TAKE DOWN THE USER ACCOUNT, USER PROFILE OR PAGE INVOLVING THE PUBLICATION AND DISTRIBUTION OF CSAEM** within twenty-four (24) hours from receipt of notice from a competent authority or notice containing sufficient information to identify the content and its source: x x x

“x x x

“(5) x x x the subscriber’s or registration information and/or traffic data of any person who:

“x x x”

“(iii) Conducted the streaming or live-streaming of child sexual exploitation~~[-];~~ **or**

“(IV) OWNS OR MANAGES THE WEBSITE, USER ACCOUNT, USER PROFILE OR PAGE INVOLVED IN THE PUBLICATION OR DISTRIBUTION OF CSAEM;

“x x x.”

(d) Section 10 is hereby amended:

“Section 10. *Penalties.* – The following penalties shall be imposed on the following offenses:

“(a) Any person who violates Section 4, paragraphs (a), (b), (c), (d), (e), (f), (g), (h), (i), ~~and~~ (j), **(T), (U), (V)** of this Act shall suffer the penalty of life imprisonment and a fine of not less than Two million pesos (P2,000,000.00).

x x x

“(f) Any person who violates Section 4, paragraph (r) **AND PARAGRAPH (W)** of this Act shall suffer the penalty of reclusion temporal and a fine of not less than Three hundred thousand pesos (P300,000.00).

(e) Section 24 is hereby amended:

“Section 24. *Who May File a Complaint.* – Complaints on cases of any form of child sexual abuse or exploitation **AS DEFINED AND** punishable under this Act may be filed by the following:

“(1) Offended party, **INCLUDING CHILDREN OR IDENTIFIABLE MINORS WHOSE FACE AND LIKENESS IS DEPICTED IN THE FORM OF SYNTHETIC MEDIA THAT IS SUBJECT OF THE COMPLAINT;**

“x x x

“(9) At least three (3) concerned responsible citizens residing in the place where the violation occurred; ~~{or}~~

“(10) Any person who has personal knowledge of the circumstances of the commission of any offense under this Act; **OR**

“(11) **PERSON OF THE IDENTIFIABLE MINOR WHO IS THE SUBJECT OR WHO IS SHOWN OR REPRESENTED THEREIN IN THE CSAEM, OR WHOSE FACE AND LIKENESS IS DEPICTED IN THE FORM OF SYNTHETIC MEDIA THAT IS THE SUBJECT OF THE COMPLAINT.**

SECTION 2. Implementing Rules and Regulations. – The members of the IACAT shall develop and promulgate the implementing rules and regulations (IRR) within sixty (60) days from the effectivity of this Act.

SECTION 3. Suppletory Application of the Revised Penal Code. – The Revised Penal Code shall be suppletorily applicable to this Act.

SECTION 4. Separability Clause. - If any part of this Act is declared unconstitutional or invalid, the other provisions not affected thereby shall continue to be in full force and effect.

SECTION 5. Repealing Clause. – All laws, decrees, executive orders, proclamations, rules and regulations, and other issuances, or parts thereof which are inconsistent with the provisions of this Act are hereby repealed, amended or modified accordingly.

SECTION 6. Effectivity. - This Act shall take effect after fifteen (15) days following its complete publication in the Official Gazette or in a newspaper of general circulation.

Approved,